IN THE UNITED STATES BANKRUPTCY COURT FOR THE WESTERN DISTRICT OF OKLAHOMA

In re:	)	
	)	
JOHN Q. EXAMPLE,	)	Case No. 26-10000-XYZ Chapter 7
	)	
Debtor.	)	
	)	
SAMPLE TRUSTEE, Chapter 7 Trustee,	)	
	)	
Plaintiff,	)	
	)	
v.	)	Adv. No. 26-01000-XYZ
	)	
EXAMPLE HOLDINGS, LLC,	)	
	)	
Defendant.	)	

PLAINTIFF'S MOTION TO COMPEL DISCOVERY RESPONSES, BRIEF IN SUPPORT, AND NOTICE OF OPPORTUNITY FOR HEARING

NOTICE OF OPPORTUNITY FOR HEARING

Your rights may be affected. You should read this Document carefully and consult your attorney about your rights and the effect of this Document. If you do not want the Court to grant the requested relief, or you wish to have your views considered, you must file a written response to the requested relief with the Clerk of the United States Bankruptcy Court for the Western District of Oklahoma, 215 Dean A. McGee Avenue, Oklahoma City, OK 73102 no later than 14 days from the date of filing of this request for relief. You should also serve a file-stamped copy of the response to the undersigned and others who are required to be served and file a certificate or affidavit of service with the court.

The Plaintiff, the chapter 7 trustee, moves under Fed. R. Civ. P. 37(a), made applicable by Fed. R. Bankr. P. 7037, for an order compelling the Defendant to answer the Plaintiff's first interrogatories and requests for production, and states:

I. BACKGROUND

1. The Plaintiff served the discovery requests on January 5, 2026. Responses were due February 4, 2026. None has been served.

2. On February 10, 2026, counsel for the Plaintiff wrote to the Defendant asking for the responses within ten days, and offered to confer by telephone. The Defendant did not respond.

II. BRIEF IN SUPPORT

A party may move for an order compelling an answer or production when the other party "fails to answer an interrogatory submitted under Rule 33" or "fails to produce documents … as requested under Rule 34." Fed. R. Civ. P. 37(a)(3)(B)(iii)–(iv). A party that does not timely respond waives its objections to the requests unless the court, for good cause, excuses the failure.

The Plaintiff has conferred in good faith, as Fed. R. Civ. P. 37(a)(1) requires, and the Defendant has neither answered nor objected.

WHEREFORE, the Plaintiff asks the Court to order the Defendant to serve complete responses, without objection, within fourteen days, and to grant such other relief as is just.

Dated: March 2, 2026.

Respectfully submitted,

/s/ Alex B. Counsel
Alex B. Counsel, OBA #00000
EXAMPLE LAW PLLC
100 Main Street
Oklahoma City, OK 73102
Telephone: (405) 555-0100
Facsimile: (405) 555-0101
Email: acounsel@example.com
ATTORNEY FOR PLAINTIFF

CERTIFICATE OF SERVICE

I hereby certify that on March 2, 2026, I served a true and correct copy of the foregoing on the following by the Court's ECF System, and on the persons named below, at the addresses shown, by first-class United States mail, postage prepaid:

Example Holdings, LLC
Attn: Managing Member
200 Second Street
Tulsa, OK 74103

/s/ Alex B. Counsel
Alex B. Counsel, OBA #00000
100 Main Street
Oklahoma City, OK 73102
Telephone: (405) 555-0100